

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2023CUCO011085: VICTOR VALERIEVICH ANTONOV vs GENERAL MOTORS LLC,
et al.**

**08/04/2026 in Department 40
Motion for Attorney Fees/Costs and Expenses**

Below is the Court’s tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

On July 5, 2023, Plaintiff Victor Antonov filed a complaint for damages against Defendants General Motors LLC (“GM”) and Martin Automotive of Simi Valley, Inc., alleging claims for: (1) fraud and deceit, (2) breach of written warranty pursuant to the Magnuson-Moss Warranty Act, (3) breach of implied warranty pursuant to the Magnuson-Moss Warranty Act, (4) breach of written warranty pursuant to the Song-Beverly Consumer Warranty Act, (5) breach of implied warranty pursuant to the Song-Beverly Consumer Warranty Act, (6) violation of Business & Professions Code § 17200 et seq., (7) violation of Business & Professions Code §§ 17500 et seq., (8) negligence, and (9) strict liability. On November 20, 2024, a request for dismissal was entered as to Defendant Martin Automotive of Simi Valley, Inc.

On January 14, 2026, a Notice of Settlement of Entire Case was filed. On May 14, 2026, Plaintiff filed the current motion for \$80,101.50 in attorney fees and \$4,562.29 in costs. Defendant opposes, arguing that 75.58 of the 92.6 hours billed, or a total of

I. Legal Standard

Civil Code section 1794. subdivision (d), provides as follows: “If the buyer prevails in an action under [the Song-Beverly Act], the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “By permitting prevailing buyers to recover their attorney fees in addition to costs and expenses, our Legislature has provided injured consumers strong encouragement to seek legal redress in a situation in which a lawsuit might not otherwise have been economically feasible.” (*Murillo v. Fleetwood Enterprises, Inc.* (1998) 17 Cal.4th 985, 994.)

The lodestar adjustment method, including the use of fee multipliers, is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135–1136; *Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 818-819.) The court must base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged. (*Robertson, supra*, 144 Cal.App.4th at

p. 817.) A reasonable hourly rate is “the prevailing rate in the community for comparable professional legal services.” (*PLCM Group, supra*, 22 Cal.4th at p. 1096.)

Likewise, when the prevailing buyer has a contingency fee arrangement, he or she is entitled to recover “reasonable attorney fees for time reasonably expended.” (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 105, at fn. 6.) This is consistent with California’s approach to determining a reasonable attorney fee in various statutory and contractual contexts, which approach “ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.)

The lodestar figure may be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided. (*Ketchum, supra*, 24 Cal.4th at p. 1132 [“The lodestar is the basic fee for comparable legal services in the community.”].) These case-specific, lodestar adjustment factors may include, without limitation: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award. [Citation.]” (*Ibid.*) The “procedural demands” of the case may also be considered. (*Nightingale, supra*, 31 Cal.App.4th at p. 104.) The lodestar adjustment method “anchors the trial court’s analysis to an objective determination of the value of the attorney’s services,” and thus ensures that the amount awarded is not arbitrary. (*PLCM Group, Inc., supra*, 22 Cal.4th at p. 1095.) A prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation and were reasonable in amount. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816.)

In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice. (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564.)

II. Analysis

A. Number of Hours

A court determining the number of hours reasonably expended on a case “must carefully review attorney documentation of hours expended.” (*Ketchum, supra*, 24 Cal.4th at 1132.) In doing so, the court must exclude hours that “were not reasonably expended in pursuit of successful claims,” (*Harman v. City & County of San Francisco* (2007) 158 Cal. App.4th 407, 417), “attorney time spent on services which produce no tangible benefit for the client,” (*Meister v. Regents of Univ. of Cal.* (1998) 67 Cal.App.4th 637, 652), or hours that were otherwise “duplicative or excessive.” (*Graciano v. Robinson Ford Sales, Inc.* (2006) 144 Cal.App.4th 140, 161.) “[P]adding in the form of inefficient or duplicative efforts is not subject to compensation.” (*Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 556.) “To the extent a trial court is concerned that a particular award is excessive, it has broad discretion to adjust the fee downward or deny an unreasonable fee

altogether.” (*Ketchum, supra*, 24 Cal.4th at pp. 1137-1138 [“A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.”].)

Here, Armen Magarian billed for 62.90 hours of work (\$35,291), Hovanes Magarian billed for 12 hours in this case (\$8,180), Patrick Kimball billed for 13.60 hours in this case (\$9,520). They seek a 1.5 Lodestar for attorney fees of \$52,991, plus an additional \$615 for legal assistant work and costs of \$4,562.29, for a total of \$80,101.50. Defendant requests a reduction to \$9,878.80.

For the reasons set forth below, the Court reduces the attorney fees by \$27,394, resulting in a n attorney fee award of \$25,597. The Court declines to apply a Lodestar multiplier. The Court declines to award the \$615 for legal assistant work. The Court grants the costs of \$4,562.29. Therefore, the total award is \$30,159.29.

1. Pre-Filing Clerical, Internal, and Duplicative Time — May 2, 2023 to July 4, 2023.

Defendant categorizes work under this heading as not compensable and seeks a reduction of 11.3 attorney-hours/\$6,475.00. Work falling into this category include: 0.8 hours (\$520.00) by H. Margarian on May 2, 2023 to prepare and execute a retainer agreement and conduct a same day “final consultation” (this is overhead — and Counsel has elsewhere represented that “[c]onsultations are also free for potential clients” (H. Margarian Decl., ¶ 21)); 0.6 hours (\$330.00) by A. Margarian on May 3, 2023 to receive documents and 1.0 hour (\$550.00) for case-file “Itemization” (clerical case-management work, *Missouri v. Jenkins by Agyei* (1989) 491 U.S. 274, 288 fn. 10); 1.1 hours (\$605.00) for pre-retention “Assessment” entries on May 10 and June 9, 2023; 0.7 hours (\$385.00) on May 10 and May 16, 2023 for two “Communication with the Team” entries (intra-firm conferences are not chargeable to opposing counsel); 1.5 hours (\$975.00) on May 7, 2023 for an attorney-conducted “Preliminary Vehicle Inspection & Test Drive” (test-driving the vehicle is not legal work); 1.3 hours (\$715.00) on May 4, 2023 for generic “research” of other lemon law cases, warranties, and recalls that Counsel performs identically in every case; 0.9 hours (\$505.00) on May 21 and June 8, 2023 for the templated demand letter and review of GM’s acknowledgment; and 3.4 hours (\$1,890.00) on July 2-4, 2023 for drafting the templated nine-count Complaint (Bowton Decl., ¶ 3, compare Ex. A with Ex. B), the senior “[r]eview[.]” of it, and assembling the “Lawsuit Package,” CCCS, Summons, and Statement of Damages (court-form fill-in clerical work).

The Court reduces these fees by \$4,080.00.

2. Block-Billed Post-Filing Clerical Entries – Throughout.

Defendant seeks a reduction of 3.5 hours (\$1,925.00) for clerical work done by A. Magarian, including checking the status of the filing of the templated complaint, ordering and logging service of process, documenting costs, making notes in the case file, calendaring deadlines, and receiving and “notat[ing]” routine notices, minute orders, and discovery responses. (H. Margarian Decl., Ex. A.) These entries reflect nonrecoverable case-management and secretarial

work billed at attorney rates, and their block-billed descriptions prevent the Court from assessing the reasonableness of each task.

The reasonable value of the clerical work is \$875.00 (3.5 hours x \$250/hour), resulting in a reduction of \$1,050.00.

3. Excessive “Review” by Mr. H. Margarian – Throughout.

Defendant requests a reduction of 2.3 hours/\$1,495.00. H. Margarian, an attorney with nearly nineteen years of experience, billed 2.3 hours (\$1,495.00) across twenty 0.10 and 0.20 hour increments to “review” virtually every routine document drafted by A. Margarian — an attorney with approximately eight¹¹ years of experience — including notices of remote appearance, case management statements, meet-and-confer letters, and templated discovery. These minimum-increment entries permeate Counsel’s billing throughout the life of this case. Layered senior-attorney “review” of routine work is duplicative time padding, and GM should not be required to reimburse Counsel for it.

The Court reduces these fees by \$1,495.00.

4. Outside Appearance-Attorney Coverage — Throughout.

Defendant requests a reduction of 1.2 hours (\$660.00) to send an outside appearance attorney rather than appear at the hearings in this case. A. Margarian then billed 1.2 hours (\$660) across four entries to prepare the appearance attorney and review the appearance attorney’s notes — including one entry dated “3/10/2024” that appears in Counsel’s bill out of chronological sequence, after entries from December 2024.

The Court agrees that the decision to use an outside appearance attorney is a staffing choice for Counsel’s convenience; the resulting hand off and debrief time is not compensable. Therefore, the Court reduces these fees by \$660.00.

5. Excessive Time Spent Drafting Discovery Requests to GM — October 2023; November 2023; December 2024; May 2025.

Plaintiff’s counsel drafted and billed for four rounds of templated written discovery to GM — roughly 290 individual requests — in this “simple lemon law action.” A. Margarian billed 2.0 hours (\$1,100.00) to draft the first set (plus Form Interrogatories), 2.8 hours (\$1,540.00) for a second set served roughly six weeks later, 1.4 hours (\$770.00) for a third set in December 2024, and 1.1 hours (\$605.00) for “supplemental” requests in May 2025 — 7.3 hours (\$4,015.00) in all.

Defendant argues that no more than 1.0 hour should be awarded for the discovery requests and seeks a reduction of 6.3 hours or \$3,465.00. The Court disagrees. It is reasonable for Plaintiff to tailor the discovery templates to the facts of this case. Nevertheless, the time billed is a bit excessive. Therefore, the Court reduces these fees by \$1,265.00.

6. Abandoned PMK Deposition Work — November 2023 to October 2024.

Defendant seeks a reduction of 2.5 hours/\$1,375.00 for a PMK deposition that never happened: 0.5 hours to draft the templated deposition notice on November 2, 2023 (compare Ex. E with Ex. F), 1.1 hours to review GM's objections, 0.5 hours to draft two meet-and-confer letters in June and October 2024, and 0.4 hours to review GM's responses to those letters.

The fact that the deposition did not take place does not automatically render the initial preparation and related work unreasonable or the incurred attorney fees unjustified. Accordingly, the Court denies Defendants' request for a reduction of these fees.

7. Excessive Time Reviewing GM's Answer, Discovery Responses, and Document Production — Throughout.

Defendant requests a reduction of 16.8 hours/\$9,240.00. A. Margarian billed a combined 17.8 hours (\$9,790.00) to review GM's Answer "thoroughly," GM's responses to each of the four rounds of discovery "one by one," and GM's 615-page document production over three separate sittings. GM's discovery responses are templated and do not vary significantly from case to case, and the bulk of the 615-page production consists of standard materials such as the warranty booklet and the owner's manual, which do not need to be reviewed cover-to-cover and do not vary from case to case.

Defendant posits that it should not have taken more than 1.0 hour to review GM's Answer, first-set responses, and document production, and the time spent reviewing responses to Counsel's unnecessary later rounds should be stricken. Notwithstanding the likeness of GM's discovery responses to those in other litigation cases handled by Plaintiff's counsel, one hour of time is not reasonable. However, 16.8 hours is also not reasonable. The Court reduces the time to review the answer, discovery responses, and document production to 4 hour, resulting in a reduction of \$7,590.00.

8. Duplicative and Unnecessary Second Vehicle Inspection — October 6-12, 2023.

Plaintiff's counsel billed 4.3 hours (\$2,595) for a second vehicle inspection: 0.8 hours by A. Margarian to schedule the inspection and send repair orders to the retained expert, 2.3 hours (\$1,495.00) by H. Margarian to attend the inspection with the retained expert, and 1.2 hours by A. Margarian to "[c]ommunicate[] inspection results" with the expert who was present and to "[r]eassess[] the case."

Attending a vehicle inspection is not legal work, internal communications with the retained expert who conducted the inspection are not chargeable to GM, and "reassessing" the case is not billable. Therefore, the Court reduces these fees by \$1,275.00.

9. Communication with Defendants — Block-Billed Multi-Year Entries.

Plaintiff's counsel block-billed 3.1 hours (\$2,120) in two undifferentiated entries for "[c]ommunication with Defendants re: discovery, other pleadings, and settlement, surrender": 2.1 hours (\$1,470) by Kimball for the period "10/01/2024 - 09/25/2026," and 1.0 hour (\$650) by H. Margarian for the period "03/17/2024 - 09/25/2026." (H. Margarian Decl., Ex. A.) Defendant contests these entries because (i) they purport to cover a period ending September 25, 2026 — more than four months after Counsel filed this motion and nearly two months after the August 4, 2026 hearing date, and (ii) block billing across a two-year span makes it impossible for the Court to determine which communications, if any, were necessary to Plaintiff's case or occurred before the SAR was executed. In its Reply, Plaintiff clarified that the "2026" was a typographical error and that the correct date is September 25, 2025.

Nevertheless, the Court agrees that block billing for an 18-month period does not provide sufficient detail. The parties counsel, however, clearly communicated over the course of this litigation and a total of 3.1 hours for this work is reasonable. For that reason, the Court declines to reduce these fees.

10. Client Communications.

Plaintiff's counsel "billed" 11.5 hours (\$6,577.00) for client communication across 46 separate entries spanning two and a half years, with each entry containing an identical description: "The details of this communication, including the discussed topics, remain protected by the attorney-client privilege." (H. Margarian Decl., Ex. A, Section 3.) GM objects on multiple bases, including that 46 separate communications with one plaintiff recurring every two to three weeks over a routine matter seems excessive, and that communications about executing the settlement agreement should not be compensable.

Because some of the entries are vague and unreasonably frequent, the Court reduces these fees by \$4,182.00.

11. Fee Motion, Including Speculative "(Estimation)" Entries.

Plaintiff's counsel billed 18.1 hours (\$12,767.00) towards the present fee motion and case wrap-up, including five entries for work not yet performed: 2.5 hours (\$1,750) to review the opposition (this brief), 4.5 hours (\$3,150) to draft a reply, 0.3 hours (\$225) for H. Margarian to review the reply, 2.5 hours (\$1,875) for H. Margarian to prepare for and attend the hearing, and 0.3 hours (\$210) for Kimball to prepare a request for dismissal — 10.1 hours (\$7,210.00) in all, each expressly labeled by Counsel as an estimation. (H. Margarian Decl., Ex. A, Sections 2 and 4.)

Section 1794(d) allows recovery only of fees actually expended. Additionally, the time to audit the billing records is not compensable. Accordingly, the Court reduces these fees by \$4,000.00.

12. Non-Compensable Assistant Time.

Plaintiff's counsel seeks \$615 for 4.1 hours billed by H. Margarian's legal assistant, Elmira Oganyan, for proofreading, mailing the demand letter, and redacting exhibits — all

non-compensable clerical work subsumed in overhead. The Court therefore grants a reduction of \$615.00.

B. Multiplier.

“[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors, including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award. [Citation.] The purpose of such adjustment is to fix a fee at the fair market value for the particular action.” (*Ketchum, supra*, 24 Cal.4th at p. 1132.) A trial court is not required to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors, but it retains discretion to do so in the appropriate case. A trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable. (*Ketchum, supra*, 24 Cal.4th at p. 1138-1139.)

Here, counsel seeks a 1.5 multiplier to be applied to the fees. However, this case does not appear to have posed any novel or difficult issues. The complaint, answer, and the discovery propounded all appear to have been templated and typical of such documents filed by Plaintiff’s counsel in similar lemon law cases. Not a single deposition was taken. In short, this was a not a complex case.

The contingent fee aspect of the case also does not support a multiplier. As admitted by Plaintiff’s counsel, the attorneys’ hourly rates already take into account the contingent risk by charging a premium rate (\$100/hour more than non-contingent fee rates).

As for counsel’s skill and experience, the rates also take into account the particular attorney’s skills and years of experience in automotive litigation. Thus to apply a 1.5 multiplier to the lodestar fees would be largely double counting factors that already are reflected in the rates charged (\$550/\$670, \$700, \$750).

The motion states that the risk factor in lemon law cases is “huge,” as the average recovery of attorney fees is “\$0 per hour for 1/3 of [Counsel’s] cases, about \$100 per hour for the other 1/3 of [Counsel’s] cases.” A “1.5 multiplier on cases with a statutory settlement will allow Counsel to recover \$1,125 per hour, and therefore an average rate of \$375 per hour across all of these cases.” (Motion, p. 17:24-27.) In *Ketchum, supra*, 24 Cal.4th at pp. 1137-1138, the court pointed out that “the calculation of an appropriate fee has nothing to do with the amount of time an attorney may invest in other, unrelated, losing cases.” In other words, an attorney is entitled only to fees incurred in the particular case in which the fees are sought; such fees are not mean to compensate for the risk of not prevailing in other contingent fee cases (a “pooled” risk). (*Ibid.*) Thus, this line of reasoning for applying a multiplier appears misplaced.

Based on the foregoing, the Court denies the request for a multiplier to be used. (*Ketchum, supra*, 24 Cal.4th at p. 1138 [“the trial court is not required to include a fee enhancement to the basic lodestar figure for contingent risk, exceptional skill, or other factors”].)

C. Costs.

Plaintiff requests costs of \$4,562.29. The opposition purports to oppose costs (see Table of Contents) but the actual text fails to identify any specific costs that are opposed. No separate motion to tax costs has been filed. Accordingly, the costs are granted in full.

III. Conclusion

The Court rules as follows:

Defendant billed a total of \$52,991.00 in attorney fees. This is an excessive amount for a non-complex case that presented no novel issues. The Court will exercise its discretion and reduce this amount to \$25,597. This amount accurately reflects the reasonable amount of attorneys’ fees in a case which was not particularly complex and which was handled by counsel experienced in this area of law.

The Court will deny the application of a 1.5 multiplier. The use of a multiplier is not warranted in this case. The contingent fee nature of the representation was taken into account in setting the attorneys’ hourly rates (which were higher than in non-contingent fee cases), and the rates reflected the attorneys’ skill and years of experience in this area of law. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138-1139.)

Fees for the legal assistant are denied as clerical work that is part of the overhead.

The Court will award costs in the amount of \$4,562.29.

Defendant shall pay Plaintiff the total award of \$30,159.29 within 30 days of service of the Court’s ruling.

Counsel for moving party to give notice of the Court’s ruling.